

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, JUNE 04, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**Capital One N.A. v. Lukenathan De Jesus
Case No. CL24-05590**

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Plaintiff served this motion by mail. Defendant LUKENATHAN DE JESUS's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

Should Plaintiff refile this motion, Plaintiff must personally serve the motion.

While the court appreciates the use of stipulations by Plaintiff's counsel in this manner, the practice compares to the use an impermissible confession of judgment without appearance by a named Defendant which fails to satisfy due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)
